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SUPREME COURT, U.S.
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IN THE
Supreme Court of the United States
October Term, 1993

JUDY MADSEN, ED MARTIN, AND SHIRLEY HOBBS,
Petitioners,

v.

WOMEN'S HEALTH CENTER, INC.,
AWARE WOMAN CENTER FOR CHOICE, INC.,
EPOC CLINIC, INC., and CENTRAL FLORIDA
WOMEN'S HEALTH ORGANIZATION, INC.,
Respondents.

ON WRIT OF CERTIORARI TO THE
SUPREME COURT OF FLORIDA

BRIEF FOR RESPONDENTS

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QUESTIONS PRESENTED FOR REVIEW

1. Whether an injunction designed to protect workers and patients at a medical facility from conduct that inhibits access to that facility and creates health risks for individuals undergoing sensitive medical procedures is a valid time, place and manner regulation under the First Amendment.

2. Whether an injunction restricting only unprotected activity should be struck down as overbroad because its terms might be read literally to reach some protected expression.

3. Whether an injunction's detailed provisions, read in light of previous unprotected activity that prompted the injunction, must be voided for vagueness.

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BRIEF FOR RESPONDENTS

STATEMENT OF THE CASE

This case involves a sustained effort by anti-abortion forces to shut down the only women's health clinic in Brevard County, Florida, the Aware Woman Center for Choice in Melbourne ("Clinic"). The campaign against Aware Woman and other abortion clinics in Central Florida began in 1991. Rescue America sent out a leaflet announcing the arrival of Operation Rescue-National in Central Florida. R. 9-10. Petitioners Madsen, Martin and Hobbs, who are officers of Rescue America, were identified as the persons to call for more information about Operation Rescue's activities in Florida. R. 9.

In 1991, when activities directed toward the Clinic became too disruptive, the Clinic brought this action, which resulted in entry of a temporary injunction in 1991 followed by a permanent injunction on September 30, 1992. The 1992 injunction was based on findings that "[Petitioners] are individuals and organizations, acting in

concert, who have planned a nationwide campaign which they call 'OPERATION RESCUE' . . . directed towards closing down abortion clinics and providers throughout the country," J.A. 6.,¹ and that the Petitioner Ed Martin had "stated an intent to prevent persons from having abortions in the Brevard and Seminole County areas by blocking access to clinics." The Court found that Petitioner Martin had issued a press release which "announces an 'Operation Rescue' for Central Florida." J.A. 7.²

Based on its conclusion that the protesters threatened the Clinic's prospective business relationships with clients "seeking access to abortion, gynecological and other family planning services," the threats to property interests, and the threat of interference with the patient's right of choice guaranteed by the Florida Constitution, J.A. 7, 8 (¶¶ 1-2), the court concluded it should issue an injunction to protect the clinic from the obstruction of ingress and egress, physical abuse of staff and patients and the directing of others to engage in these activities. J.A. 9 (¶¶ A 1-3).³

Entry of the September 1992 injunction did not lead the protesters to respect the rights of the Clinic staff or patients; indeed, the activity directed against the Clinic escalated after this court order. Throughout the rest of 1992, the Rescue America newsletter, written by Petitioners Martin and Madsen, J.A. 414-15, continued to urge "rescue" activity, which was defined in this publication:

¹ Citations to the Joint Appendix will appear with the notation "J.A.;" citations to the appendix accompanying the Petition for Writ of Certiorari will be shown as "Cert. Pet. App.," and citations to the full Record on Appeal will appear with the notation "R."

² The Petitioners have attempted to distance themselves from Operation Rescue and the protesters who have disrupted the Clinic (Petitioners' Brief 3, 44, "Petitioners are not members of Operation Rescue . . .," Petitioners' Brief 7), but the record is not in question. In its 1992 order, the court found that Petitioners Ed Martin, Judy Madsen and Shirley Hobbs are members of Operation Rescue, J.A. 6 (¶¶ 2, 4).

³ The Petitioners state that they do not challenge this order. Petitioners' Brief 8, 43. The 1992 injunction was appealed by the Petitioners and was affirmed by Florida's Fifth District Court of Appeal on December 17, 1993 (Case No. 92-2684).

The term rescue refers to blockikng [sic] access to the entrance of abortion clinics. . . . In most cases, the clinic is shut for the day. Many appointments do not reschedule.

J.A. 109, 413.⁴

In the months following the September 1992 injunction, the Clinic suffered a December 1992 butyric acid attack; the Clinic doors were disabled with super glue, J.A. 246-247; the doctor serving the Clinic received threats including a mock shooting,⁵ J.A. 54, 191; false statements were made about the medical staff, J.A. 215; and focused residential picketing against the Clinic staff continued, J.A. 498.

In January 1993, there was a greater escalation of activity with the arrival of the "IMPACT" Team. J.A. 247.⁶ This increase in

⁴ Paragraph 2 of the Stipulation executed by the Petitioners prior to the September 1992 Injunction, R. 64, stated:

Operation Rescue America, Ed Martin, Judy Madsen and Shirley Hobbs are active in an organization known as "Operation Rescue America," (hereinafter referred to as "Operation"). In other areas of the United States, this effort has been directed toward closing down abortion clinics throughout the country to save unborn children. [Petitioners'] desire is to close down "abortion mills" by various means. Operation Rescue America, Ed Martin, Judy Madsen and Shirley Hobbs well understand that peacefully blocking access to the facilities might constitute a trespass that is punishable by criminal penalties. They feel a violation of such a criminal statute is justified by their belief that protection of the unborn may merit breaking the criminal trespass laws. R. 64-65.

⁵ On this occasion, Dr. Snyder was followed as he left the Clinic by Meredith Raney, a member of the Operation Rescue IMPACT Team. J.A. 189. Raney sped down U.S. Highway 1 after Dr. Snyder. J.A. 190. When Dr. Snyder pulled off the road, Raney pulled up next to him. J.A. 54, 191. Raney rolled down the window, made his hand into the shape of a gun, grinned and pretended to shoot Dr. Snyder. J.A. 54, 191.

⁶ "IMPACT" is the "Institute of Mobilized Prophetic Activated Christian Training," J.A. 41, and it was a nationally recruited group designed to "Help equip, train and lead these groups into true spiritual warfare." J.A. 41. The use of military terms pervades the literature of the protesters. Terms like "weapon," "battle" and "warfare" are typical. *Id.*

activity included a range of new tactics directed against the Clinic. J.A. 256-57, 274-75. The number of protesters who came to the Clinic increased, J.A. 268; the Clinic's phone lines were systematically tied up, J.A. 55 (¶ 2); theft increased, J.A. 273; targeted residential picketing was intensified, J.A. 509; and access to the Clinic was made more difficult, J.A. 271.

In March of 1993, the Clinic was under siege. As many as four hundred protesters crowded the narrow residential street⁷ which provided the only access to the Clinic. J.A. 51, 262, 291, 293. They moved in a steady stream across the Clinic driveway. J.A. 534, 542. Their presence caused cars entering the Clinic property to slow or stop entirely. J.A. 51, 266, 542. As the cars slowed, a cadre of protesters swarmed around them, shoving literature into the cars' windows and, pressing close to the cars, screaming invective. J.A. 265, 266, 542.

On the flanks of the Clinic property, others propped ladders against the Clinic's 8-foot privacy fence, shouting at patients and staff and holding up signs above the fences which carried the names of patients and of their companions. J.A. 53, 538, 542. One stood on a ladder and shouted over the fence at a Clinic employee, "Ruth, Ruth, I pray that God strikes you dead. In the name of Jesus, I pray Jesus strikes you dead. I pray for your death in the name of Jesus." J.A. 556.

Faced with escalation of the activity directed against the Clinic, its patients and its staff, the Clinic returned to court and sought an amended injunction which would spell out with clarity the bounds of demonstrators' activity which interfered with Clinic access and which would address the many new techniques of stalking and harassment which arrived along with the IMPACT Team.

The amended injunction granted to the Clinic catalogues episodes of unlawful, disruptive and harassing activities at the Aware Woman Clinic. When the Clinic's physician, Dr. Frank Snyder, attempted to

⁷ The street, Dixie Way, is 21 feet 4 inches wide, and the public right-of-way on either side is around 14 feet. J.A. 65.

reach the Clinic, protesters, including Petitioner Ed Martin, blocked the path of his car. J.A. 193, 200, 211. On another occasion, Bruce Cadle (Operation Rescue's Southeast Regional Director and coordinator of the IMPACT Team) and his followers surrounded the doctor's car, screaming "Baby Killer" and "We don't want you here in Melbourne." J.A. 54. The noise level was intense.⁸ On many other occasions, patients were simply turned away by the crowd in the driveway. J.A. 54, 154, 590. These patients were denied medical care, J.A. 590, and their delay in obtaining surgery increased their health risks, J.A. 155.⁹

Patients had their names, or their companions' names, inscribed onto poster boards that were then held aloft from the tops of ladders thrust over the Clinic's privacy fence so that people on the Clinic grounds would know that the protesters were able to identify them. J.A. 53, 538, 542. Patients were stalked. J.A. 55 (¶ 3).

Physicians and staff were made to fear for their lives. Two of them, the Clinic's physician, Dr. Frank Snyder, and a nurse, Pamela Doyle, were so terrified that they quit their jobs. J.A. 55, 140, 521. In February of 1993, J.A. 171, Dr. Snyder was made the target of an attack at a hotel, The Comfort Inn, where he had stopped to rest for the night, J.A. 173. Inside the hotel, a phalanx of six to seven protesters cornered the doctor in the hotel lobby. J.A. 174. The activists approached the doctor and standing within a foot of him, screamed "child murderer" and "baby killer." J.A. 53, 177. Though forced to leave the hotel lobby, the protesters returned minutes later to confront Dr. Snyder in the coffee shop, taking his picture and calling him a child murderer. J.A. 178-179. As a result of this episode, Dr. Snyder was unable to reach the Clinic at his

⁸ The noise outside the Clinic was audible inside the Clinic and, importantly, could be heard even inside the Clinic's operating room.

⁹ Petitioners' simply misrepresent the record when they assert, baldly, that "[t]here is no evidence that any woman was prevented from obtaining an abortion." Petitioners' Brief 6. The Petitioners do correctly quote from the Eleventh Circuit opinion in *Cheffer v. McGregor*, 6 F.3d 705, 711 (11th Cir. 1993), but *Cheffer* was in error. See *infra* note 21.

scheduled time. J.A. 54, 179. After Dr. David Gunn was murdered by an anti-abortion activist in Pensacola, Dr. Snyder quit working at the Aware Woman Clinic. J.A. 55, 196-199.

Nurse Doyle, the single mother of three daughters, quit her job because she and her children were the target of focused residential picketing at her apartment complex. J.A. 492-521. Eventually, however, she returned to work. In December of 1992 — after the first injunction — the protesters, led by Cadle, returned to Doyle's home on a Sunday afternoon. J.A. 501. A group of thirty shouted at cars and residents, thrusting leaflets about Nurse Doyle into the hands of those who tried to enter the complex. J.A. 502.

In February 1993, events escalated further when a group of protesters accosted Doyle's children who were home alone while she was at work. J.A. 504-507. Doyle's children, aged fifteen, eleven and nine, were at home awaiting the arrival of their grandparents.¹⁰ Hearing a knock at the door, the nine year old child opened it. J.A. 506. A group of fifteen protesters stood outside Doyle's home, J.A. 505, 507, and two of the activists were at the door, J.A. 506. They told the children that they "wanted to convince them to convince their mother not to work at Aware Woman and stop killing babies." J.A. 507. One of the children called her mother at work, crying, and Doyle raced home to find "three terrified little girls." J.A. 505-506. Doyle moved the next day and made "arrangements" for her children.¹¹ J.A. 514. She testified that it was a struggle, every day, for her to go to work. J.A. 515.

The activity directed at the Melbourne Clinic after the September 1992 injunction, and particularly after the campaign of the IMPACT Team began in January 1993, was different in tone and intensity from

¹⁰ Nurse Doyle's parents were coming to help her daughters pack and move. Doyle and her family were moving because she felt her family "needed to find a safe place that provided some sense of security, someplace if they did find us that at least it would not be invisible to the public." J.A. 506.

¹¹ Doyle wrote letters to each of her daughters because "I felt that in case one day I'm at work and the clinic is gone for some reason that bodily harm was done, [and] I wasn't here, I wanted them to know why and how I felt." J.A. 514-15.

the earlier protest activities.¹² Capt. Allgeyer of the Melbourne police testified to the intensification of the activities, J.A. 247, the growth of the crowds, J.A. 257, their overflow into the street, J.A. 264, the protesters' disregard for police warnings about the dangers of being in the street, J.A. 265, the tactics of blocking the cars, J.A. 266, and a more intense manner of the protesters. J.A. 268.

Many of these activities by the protesters were captured on a videotape of events on February 20 and March 6, 1993. The videotape, Plaintiffs' Exhibit 6, which has been lodged with the Court. J.A. 107, was presented to the trial court through the testimony of Ruth Arick and her testimony references the date and time of the videotaped images. Her testimony narrates scenes of cars being blocked, J.A. 534, 536, the display of signs over the privacy fence, J.A. 538, 542, 553, a defendants' press conference held in the very driveway of the Clinic, J.A. 544, shouting and threats, J.A. 548, and screaming at the Clinic, J.A. 552.

It was against this background of increased blocking of access and constant harassment of the Clinic employees and patients that Judge McGregor was called upon to determine the appropriate judicial response. The original injunction had not been effective in protecting the rights of the Aware Woman Clinic, its patients and staff. Although prohibited to do so, Petitioner Martin, and others acting in concert with him, were blocking access to the Clinic by obstructing the driveways.¹³ Petitioners were also blocking access to the Clinic by harassing staff members in their homes in order to deter them from going to work or, in the case of Pam Doyle, to require

¹² Ruth Arick, a Clinic worker, testified: "I've seen a difference in the quality of demonstrations beginning about the first of 1993 . . . the protestors [sic] have gone to very directly and personally threatening the staff." J.A. 554. See also J.A. 199, 556.

¹³ There is no evidence that anyone, patient or staff member, ever arrived at the Clinic by any means other than a car. The Clinic is located in the northern-most part of Melbourne and is not accessible by public transportation.

to require her to leave work to protect her children. J.A. 505. The Clinic's situation had become so desperate that the local police captain, Gary Allgeyer, testified that enforcement of the injunction would help the police maintain public order and safety,¹⁴ J.A. 299, and that a neutral zone would be helpful to the situation. J.A. 260.

After a three-day contested evidentiary hearing, the court announced its intention to grant the Clinic's motion to modify the permanent injunction and to frame a very specific order. The Amended Permanent Injunction ("Order") entered on April 8, 1993 contained extensive findings. The court found that "despite the injunction of September 30, 1992, there has been interference with ingress to . . . the Aware Woman Clinic . . .," J.A. 50, and the court described the specific nature of the interference to ingress and egress, a finding based on extensive testimony and videotape of the defendants' activities, J.A. 50-51. The court traced the consequences of this activity, consequences which are quite graphically shown on the videotape introduced into evidence:

As vehicular traffic approached the area it would, in response to the congestion, slow down. If the destination of such traffic was either of the two parking lots of the petitioners, such traffic slowed even more, sometimes having to momentarily hesitate or stop until persons in the driveway moved out of the way.

Finding A, J.A. 51.

The findings detailed the way the demonstrators approached the vehicles trying to enter the Clinic:

¹⁴ Allgeyer also acknowledged that one of the reasons the police had experienced difficulty in maintaining order was because they had been threatened with lawsuits by the protesters. J.A. 250. Melbourne, a small community, lacks the resources to defend such lawsuits — a circumstance that weighed heavily on Allgeyer's mind, J.A. 316, and may have influenced the Melbourne police chief, who decided to give up the entire street to the demonstrators despite the obvious safety hazards and the resulting denial of access to the Clinic. J.A. 280.

As traffic slowed on Dixie Way and began its turn into the clinic's driveway, the vehicle would be approached by persons designated by the [Petitioners] as sidewalk counselors attempting to get the attention of the vehicles' occupants to give them anti-abortion literature and to urge them not to use the clinic's services. Such so-called sidewalk counselors were assisted in accomplishing their approach to the vehicle by the hesitation or momentary stopping caused by the time needed for the picket line to open up before the vehicle could enter the parking lot.

Finding E, J.A. 52-53.

The court made a particular finding about the fences which protected the Clinic's privacy and the tactics of the protesters who employed ladders to intrude on that privacy:

The clinic has fences on its west and north side, and persons would occasionally place a ladder on the outside of the fence and position themselves at an elevation above the fence and attempt to communicate by shouting at persons (staff and patients) entering the clinic. On one occasion the communication to a clinic staff person took the form of an attempt to invoke the wrath of God by shouting, "I pray that God strikes you dead now!"

Finding F, J.A. 53.

The court also made specific findings about the practice of residential picketing, including the targeting of the children of Clinic personnel, J.A. 53, and the hounding of Clinic personnel at their homes and even at a motel, J.A. 53-54.

The court found that patients were harassed by the demonstrators who crowded the street and the entranceway to the Clinic:

This physician also testified that he witnessed the demonstrators running along side of and in front of patients' vehicles, pushing pamphlets in car windows to persons who had not indicated any interest in such literature.

As a result of patients having to run such a gauntlet, the patients manifested a higher level of anxiety and hypertension causing those patients to need a higher level of sedation to undergo the surgical procedures, thereby increasing the risk associated with such procedures The doctor also testified that he observed some patients turn away from the crowd in the driveway to return at a later date. He testified that such delay in undergoing the procedures also increased the risk associated therewith.

Finding I, J.A. 54.

The doctor also testified that the noise of singing, chanting, shouting and yelling could be heard through the walls of the Clinic and caused stress in the patients during surgical procedures and while recuperating in the recovery rooms. J.A. 54.

The harassment of the patients, like that of the Clinic personnel, was not limited to the vicinity of the Clinic. The court found:

That patients and staff are sometimes followed in a stalking manner when they leave the clinic, giving such persons a feeling of great apprehension.

Finding K(3), J.A. 55.

Based on those extensive findings, which in turn were based on extensive evidence, Judge Robert McGregor entered the Order which is partially challenged by Petitioners.¹⁵ The Petitioners appealed the amended permanent injunction and, on joint motion, the case was certified to the Florida Supreme Court as a case of great public importance. The theory Petitioners advanced in the Florida Supreme Court was that the injunctive order was unconstitutional on its face and the Petitioners' record on appeal did not contain a single word of testimony or any of the trial court exhibits.

¹⁵ The Order contains elements not challenged by Petitioners such as the order to law enforcement to place a phone tap on the Clinic's phones so that the phone numbers from which "jamming" of the Clinic's phones could be established.

A unanimous Supreme Court of Florida affirmed the amended injunctive order, noting that the appellants did not "seriously question the technical validity of the amended injunction or the factual findings on which it is based." Pet. Cert. App. A-12. Nonetheless, the Court reviewed the record and found that the trial court's factual findings were supported.

The Petitioners, one of two groups who appealed the amended injunctive order to the Florida appellate courts, sought review by this Court. The Petition for Writ of Certiorari was not opposed by Respondents because of the confusion generated by an intervening decision, *Cheffer v. McGregor*, which was handed down by the Eleventh Circuit. Cert. Pet. App. C. The *Cheffer* case, discussed in footnote 19, was brought by a party not subject to the amended permanent injunction who alleged that she was not acting in concert with the Operation Rescue defendants but who claimed to fear its reach. There was no factual record in *Cheffer*¹⁶ and the Clinic was not a party. Indeed, the Clinic sought to intervene in the Eleventh Circuit proceedings and was denied that privilege. The *Cheffer* opinion, reversing the federal District Judge's dismissal of the complaint, was handed down before the Florida Supreme Court opinion and was acknowledged by the unanimous opinion which affirmed Judge McGregor. Cert. Pet. App. A-25, footnote 10.

SUMMARY OF ARGUMENT

In this case, Petitioners ask this Court to overturn an injunction designed to protect workers and patients at a medical facility from conduct that inhibited access to the Clinic, harassed and threatened people attempting to approach the Clinic, created health risks for individuals undergoing sensitive medical procedures, and blocked traffic on a public roadway. Petitioners' claim is that these activities constitute speech protected by the First Amendment. This claim

¹⁶ In the absence of a factual record, it is curious that the Eleventh Circuit majority stated, "in the instant case, there is no indication in the record that women were actually prevented from obtaining abortions at the Aware Woman Center for Choice." Cert. Pet. App. C-13. Of course, the record in the state trial court did have such evidence. J.A. 50.

cannot be defended under any interpretation of this Court's relevant precedents.

The injunction at issue in this case is a reasonable time, place and manner regulation of Petitioners' activities. The injunction easily satisfies the standard for such regulations set forth in cases such as *Clark v. Community for Creative Non-Violence*, 468 U.S. 288 (1984): The injunction is "justified without reference to the content of the regulated speech, [is] narrowly tailored to serve a significant governmental interest, and . . . leave[s] open ample alternative channels for communication ." Id. at 293.

The injunction satisfies the first part of the *Clark* standard because it regulates Petitioners' conduct, not their speech. Activities such as inhibiting access to medical facilities, blocking roadways, threatening Clinic workers, and intentionally frightening Clinic patients before and during surgery do not constitute expression protected by the First Amendment. Regardless of Petitioners' motivation for their actions, these activities are conduct, not speech, and therefore are subject to reasonable regulations to protect the health, safety and rights of those who wish to use the Clinic's facilities. To the extent that the injunction incidentally regulates Petitioners' expression, the injunction is justified as a content-neutral regulation of the secondary effects of that expression.

The injunction is narrowly tailored because it is drawn carefully to prohibit particular activities that have occurred in the recent past, which have had the effect of inhibiting access to the Clinic by patients and workers. The trial court that issued the injunction was responding to extensive testimony about Petitioners' actions, and also responding to the fact that an earlier, much more general injunction had been completely ineffective in protecting the rights of those seeking the services of the Clinic.

Finally, the injunction permits ample avenues of communication because Petitioners are entirely unrestrained in their activities outside a narrow perimeter around the Clinic and residences of Clinic workers. Petitioners can engage in exactly the same speech today as they could before the injunction was issued. The only difference

is that the Petitioners must now respect the rights of those who wish to seek medical care, or who wish to be left alone in the sanctity of their homes.

Petitioners' argument that the injunction is unconstitutionally overbroad and vague has no merit. Petitioners' overbreadth claim fails because it is nothing more than a claim that the injunction marginally infringes on protected activity. This weak contention is insufficient to satisfy this Court's requirement that an overbreadth claim must include proof that the overbreadth is "not only . . . real, but substantial as well, judged in relation to the statute's plainly legitimate sweep." *Broadrick v. Oklahoma*, 413 U.S. 601, 615 (1973). The hypothetical examples of protected speech cited by Petitioners do not even approach this standard.

Likewise, anyone of common intelligence will be able to ascertain what conduct is prohibited by this injunction. Petitioners' vagueness claim depends on a hypertechnical and even illogical reading of terms that clearly communicate what is prohibited and what is not.

Petitioners' real complaint is not that the injunction is too vague, but rather that it is all too clear. Petitioners' vagueness claim is part of an effort to reduce the injunction to its previous, ineffective form. Given the Petitioners' past history of violating clear but broad injunctive terms, this Court should recognize the need for clear guidelines protecting the interests of all parties, and uphold this injunction.

ARGUMENT

I.

THE INJUNCTION PROTECTING THE CLINIC IS A LEGITIMATE TIME, PLACE AND MANNER REGULATION OF PETITIONERS' ACTIVITIES

The injunction challenged in this case has the sole purpose of protecting patients at a medical facility from actions that directly restrict

the patients' access to medical care and therefore endanger the patients' health. The injunction was issued after Petitioners refused to obey the more general terms of an earlier injunction issued in September, 1992 and after the trial court heard extensive testimony about the harmful nature of the Petitioners' behavior and the effects this behavior had on patients at the Clinic. The terms of the injunction at issue here are detailed and precise only because the Petitioners' conduct after the issuance of the earlier injunction made it necessary for Judge McGregor to leave no doubt whatsoever about what conduct was impermissible.

The detailed terms of the injunction are specifically tied to Petitioners' conduct, and do not go beyond what is needed to protect the legitimate medical concerns of the Clinic's patients. The injunction does not prohibit any speech, nor does it attempt to regulate any particular ideas. The injunction is addressed to Petitioners' conduct, not their ideas, and it regulates expression only to the extent necessary to prevent the harmful conduct that was abundantly evident in the testimony presented to the court.

The injunction in this case is justified by a substantial body of case law permitting reasonable time, place and manner regulation of speech. See, e.g., *Ward v. Rock Against Racism*, 491 U.S. 781, 791 (1989); *Clark v. Community For Creative Non-Violence*, 468 U.S. 288, 293 (1984); *City Council of Los Angeles v. Taxpayers for Vincent*, 466 U.S. 789, 795 (1984); *Heffron v. International Society for Krishna Consciousness, Inc.*, 452 U.S. 640, 647-48 (1981).¹⁷

¹⁷ This Court has held that the time, place and manner standard applies to regulations of speech in a public forum. *Perry Education Ass'n v. Perry Local Educators' Ass'n*, 460 U.S. 37, 45 (1983). In the remainder of this brief, Respondents have assumed for the purpose of applying the time, place and manner standard that the short sidewalk outside the Clinic is a public forum. However, the sidewalk in this case closely resembles the sidewalk that a plurality of this Court deemed a non-public forum in *United States v. Kokinda*, 497 U.S. 720 (1990). In this case, the entire sidewalk is a thirty-seven foot strip of concrete four feet wide linking the entrances to the two Clinic parking lots. The sidewalk does not extend east or west beyond either Clinic parking lot, and therefore cannot be used for any purpose other than to go from one parking lot to the other, and then into

This Court has held that time, place, and manner regulations are "valid provided that they are justified without reference to the content of the regulated speech, that they are narrowly tailored to serve a significant governmental interest, and that they leave open ample alternative channels for communication of the information." *Clark*, 468 U.S. at 293.¹⁸ Each of these requirements is easily satisfied by the injunction in this case.

A. THE INJUNCTION IS NOT DIRECTED AT THE CONTENT OF PETITIONERS' SPEECH.

A regulation of speech is content neutral when it is "justified without reference to the content of the regulated speech." *Virginia State Bd. of Pharmacy v. Virginia Citizens Consumer Council, Inc.*, 425 U.S. 748, 771 (1976). The injunction in this case is directed at the harmful effects of Petitioners' conduct, not the content of their speech. As the Florida Supreme Court recognized: "The restrictions regulate when, where, and how Operation Rescue may

the Clinic. Thus, this sidewalk is analogous to the sidewalk in *Kokinda*, which "leads only from the parking area to the front door of the post office," and "was constructed solely to assist patrons to negotiate the space between the parking lot and the front door of the post office, not to facilitate the daily commerce and life of the neighborhood or city." *Id.* at 727-28. If this Court finds that the sidewalk outside the Clinic is analogous to the sidewalk in *Kokinda*, regulations of conduct on the sidewalk would be subject to a simple reasonableness test. *Id.* at 730. Because of the strong state interest in protecting the Clinic workers and patients, the provisions of the injunction regulating the protesters' actions on the sidewalk are reasonable and should be upheld.

¹⁸ At one point in their brief, Petitioners argue that the injunction fails the four-part *O'Brien* test applicable to regulations of symbolic speech. See *United States v. O'Brien*, 391 U.S. 367 (1968); Petitioners' Brief 20-21. However, as Petitioners acknowledge, this Court treats the *O'Brien* test as "little, if any different" from the time, place and manner test. *Clark*, 468 U.S. at 298. "Expression, whether oral or written or symbolized by conduct, is subject to reasonable time, place or manner restrictions." *Id.* at 293. Therefore, the conclusion that the injunction at issue in this case satisfies the time, place and manner standard also resolves Petitioners' *O'Brien* claims.

speak, not what it may say. The restrictions make no mention whatsoever of abortion or any other political or social issue; they address only the volume, timing, location, and violent or harassing nature of Operation Rescue's expressive activity." *Operation Rescue v. Women's Health Center, Inc.*, 626 So. 2d 664, 671 (Fla. 1993).

Contrary to the main thrust of Petitioners' brief, the injunction at issue in this case is not "content based" merely because it protects the patients and staff of the Aware Women's Clinic from specific groups or individuals who have deliberately and repeatedly violated the rights of the Clinic's patients and staff. The trial court was not concerned with the particular point of view that motivated the Petitioners. The court was concerned only with the fact that Petitioners and those acting in concert with them had engaged for months in blocking access to the Clinic, harassing and threatening Clinic personnel, and intentionally creating conditions that caused an increased health risks to the Clinic's patients.

Judge McGregor issued the injunction in this case to stop Petitioners and their fellow protesters from doing exactly what they said they would do: "prevent persons from obtaining abortions in the Brevard and Seminole County area by blocking access to clinics." J.A. 6. Because the injunction targeted Petitioners' actions, rather than their beliefs, the injunction does not violate the First Amendment. Although the First Amendment prohibits the state from sanctioning abstract beliefs, it does not prohibit the state from regulating specific harmful conduct simply because the conduct is motivated by abstract beliefs. See *Wisconsin v. Mitchell*, 113 S.Ct. 2194 (1993).

Many federal and state courts have recognized, in circumstances similar to those in this case, that limited injunctive relief protecting the health and safety of abortion clinic patients and workers does not constitute "content based" or "viewpoint based" regulation. As the United States Court of Appeals for the Third Circuit recently observed with regard to a similar injunction:

[T]he injunction could apply equally to protests which supported abortion as well as to protests which opposed abortion, or indeed, to protests supporting or opposing

any other cause. It is true that this injunction applies only to [these abortion opponents], but that is because it is only those persons who the Center has proved have created and are continuing to create a threat of violence and intimidation.

Northeast Women's Center, Inc. v. McMonagle, 939 F.2d 57, 63 (3d Cir. 1991).¹⁹

Petitioners base their claim of content and viewpoint discrimination on an inaccurate description of the injunction's terms and scope. See Petitioners' Brief 12 ("The injunction's restriction of pro-life speech and exemption of prochoice speech establishes that it is not viewpoint-neutral.") On the contrary, the terms of the injunction are not limited to persons holding anti-abortion views. The injunction would also apply to any individuals or groups that decided to drive

¹⁹ See also *New York N.O.W. v. Terry*, 886 F.2d 1339, 1364 (2d Cir. 1989) ("injunction effectuates significant governmental interests in maintaining public safety — controlling traffic on the streets and sidewalks [and] it ensures that the constitutional rights of one group are not sacrificed in the interest of the constitutional rights of another"), *cert. denied*, 495 U.S. 947 (1990); *Medlin v. Palmer*, 874 F.2d 1085, 1090 (5th Cir. 1989) (regulation prohibiting use of amplifiers within 150 feet of medical facilities served governmental interests in protecting patients of hospitals and clinics); *Portland Feminist Women's Health Ctr. v. Advocates for Life, Inc.*, 859 F.2d 681, 686 (9th Cir. 1988) (injunction vindicates significant governmental interest in protecting ability of clinic to provide medical services free from actions that endanger health and safety of patients); *Bering v. SHARE*, 721 P.2d 918, 925 (Wash. 1986) ("Although only anti-abortion picketers are bound by the geographic restriction of picketing, . . . that in itself cannot be viewed as content regulation. The trial court imposed the place restriction in order to regulate the conduct of a particular group of persons before the court."), *cert. dismissed*, 479 U.S. 1050 (1987); *Hirsh v. City of Atlanta*, 401 S.E.2d 530, 533 (Ga.), *cert. denied*, 112 S. Ct. 75 (1991) (state has significant interest in protecting health and welfare of its citizens and their right to obtain medical care); *O.B.G.Y.N. Ass'n v. Birthright of Brooklyn and Queens, Inc.*, 407 N.Y.S.2d 903, 905 (N.Y. App. Div. 1978) (injunction against protesters furthers substantial governmental interest in the health or safety of any patient of the medical clinic).

the Clinic out of business for reasons having nothing to do with opposition to abortion rights (for example, as part of an effort to limit commercial development and traffic congestion in the area), if they joined with Petitioners to achieve that goal and engaged in the behavior prohibited by the terms of the injunction.²⁰ Motives, thoughts, expression, and ideology are all irrelevant in determining whether the injunction applies to a particular individual's behavior; the crucial factor is whether the individual engaged in activities prohibited by the injunction.²¹

²⁰ Judge McGregor's statements at the April 12, 1993, contempt hearing are not to the contrary. See J.A. 71. In these statements, Judge McGregor merely pointed out that the individuals who were arrested for violating the injunction were engaging in fundamentally different behavior than the Clinic workers who were in the same area, but were not arrested. When Judge McGregor told Mr. Lacy that the injunction "did not pertain to those on the other side of the issue," J.A. 71, he was referring to the fact that the people "on the other side of the issue" (that is, the Clinic workers) were not engaging in activity that "continue[s] to impede and obstruct both staff and patients from entering the clinic," which is what the injunction was intended to prevent. J.A. 55. The Judge did not imply, as Petitioners suggest in their brief, see Petitioners' Brief 10-11, that the injunction applied to Petitioners because of their substantive views on the subject of abortion rights. In fact, Judge McGregor went out of his way to make it clear that protesters would *not* be convicted for violating the injunction simply because of their views. J.A. 56.

²¹ In arguing that the injunction is an unconstitutional content-based regulation of speech, Petitioners rely heavily on *Cheffer v. McGregor*, 6 F.3d 705 (11th Cir. 1993). In *Cheffer*, the Eleventh Circuit reversed a federal District Court's refusal to grant a preliminary injunction against the enforcement of the state court injunction. In its opinion, the Eleventh Circuit asserted that an injunction against Operation Rescue and its adherents was "no more viewpoint-neutral than one restricting the speech of 'the Republican party, the state Republican party, George Bush, Bob Dole, Jack Kemp and all persons acting in concert or participation with them or on their behalf.'" *Cheffer*, 6 F.3d at 711. Like Petitioners' argument, the Eleventh Circuit ignores the obvious fact that even political parties may be required to comply with an injunction if their conduct infringes the legal rights of other citizens. If George Bush, Bob Dole, Jack Kemp, and members of the Republican party had repeatedly blocked the driveway to Democratic National Headquarters and harassed and intimidated its staff members, they (and those acting in concert with them)

In fact, Sections (3) through (9) are nothing more than specific provisions intended to carry out the general prohibition of Sections

could be enjoined from continuing to do so. The fact that such an injunction would run against political figures is irrelevant for First Amendment purposes because the injunction would be directed at their *conduct*, not their beliefs.

On this and several other points, Petitioners cite *Cheffer* repeatedly to support their position in this case. However, the Eleventh Circuit's decision in *Cheffer* contains such an unusual and badly mistaken analysis of federal law that it has virtually no value in analyzing the issues before this Court. The problems begin with the strange holding of the case. The Eleventh Circuit ruled that the District Court's denial of a preliminary injunction against the state court was "founded on a mistake of law." *Id.* at 712. The District Court's "mistake of law" was that it "treated the state court injunction as an ordinary injunction when it had the effect of a criminal statute." *Id.* The Eleventh Circuit did not cite any precedent supporting its conclusion that "the injunction has all the attributes of a criminal statute and we will treat it accordingly." *Id.* at 708. The Court's rationale for this determination was that "[o]n its face, the injunction appears to 'criminalize' various acts of peaceful protest." *Id.* at 707. Since the same would be true of every injunction enforceable by criminal contempt sanctions (which is to say, virtually all injunctions), it is unclear why the Eleventh Circuit found this injunction distinctive. It is also unclear why the Eleventh Circuit held — apparently in the absence of any evidence — that "[i]t is obvious to us that Judge McGregor did not intend the Amended Permanent Injunction to be enforced through the civil contempt process The injunction clearly attempts to circumvent a civil contempt process that the judge considered too cumbersome." *Id.* at 707 n.2.

Aside from the problematic substantive discussion in *Cheffer*, the Eleventh Circuit should not have reached the merits of the injunction at all. The court reached the merits only by misapplying three major doctrines of federal jurisdiction: standing, ripeness and *Younger* abstention. The Eleventh Circuit held that the plaintiff in the case had standing to "challenge the restrictions placed on her free speech by the Amended Permanent Injunction." *Id.* at 709. The problem with this holding is that *Cheffer* raised only vague allegations about her own expressive activities, and seems to have claimed at most that the injunction generally chilled her speech. See *id.* at 714 (Paine, J., dissenting). Yet *Cheffer* also claimed that she was not acting in concert with the Petitioners. *Id.* at 714 (Paine, J., dissenting). Therefore, since she was not subject to the injunction at all, she was a completely disinterested party.

This Court has held that claims of general chilling effect do not satisfy

(1) and (2), whose legitimacy is conceded by Petitioners. *Id.*, Judge McGregor added the more precise provisions to the general ban on blocking access to the Clinic (which had been the main part of the earlier, September 1992 injunction) because the overwhelming weight of the testimony before the court indicated that the earlier general prohibition had failed to achieve its purpose. J.A. 50-55. If Petitioners recognize the content-neutral basis of the original in-

the ripeness requirement of Article III, see *Laird v. Tatum*, 408 U.S. 1 (1972); *United Public Workers of America v. Mitchell*, 330 U.S. 75 (1947). Nevertheless, the Eleventh Circuit did not even mention the ripeness requirement. This Court has also held that claims as indefinite as Ms. Cheffer's cannot satisfy the imminence and concreteness components of the Article III injury-in-fact standing requirement. See *Lujan v. Defenders of Wildlife*, 112 S. Ct. 2130 (1992); *Valley Forge Christian College v. Americans United*, 454 U.S. 464 (1982). The Eleventh Circuit brushed aside the standing requirement by treating the injunction as a statute infringing on First Amendment rights, and asserted that in such cases, "it is unimportant that Cheffer has alleged that she intends to exercise her own rights to free speech." *Cheffer*, 6 F.3d at 709 n.5.

The Eleventh Circuit's treatment of the *Younger* abstention doctrine is also inconsistent with directly applicable Supreme Court precedent. While the Eleventh Circuit acknowledged that *Younger v. Harris*, 401 U.S. 37 (1971), prohibits federal courts from interfering in state court proceedings, the court held that the *Younger* doctrine did not apply to Cheffer's case because "Cheffer has no remedy in state court except to subject herself to a criminal contempt citation." *Id.* at 709. It is difficult to understand the Eleventh Circuit's logic on this point. If Ms. Cheffer is acting in concert with the Petitioners, then she is covered by the injunction and her interests in challenging the injunction are adequately represented by Petitioners in the state court litigation. See *Hicks v. Miranda*, 422 U.S. 332, 348-49 (1975); *Doran v. Salem Inn*, 422 U.S. 922, 928-29 (1975). On the other hand, if Ms. Cheffer is not acting in concert with the Petitioners, then she is not covered by the injunction and does not have standing to pursue the federal lawsuit seeking to prevent the state courts from enforcing their rulings.

Petitioners can take little solace from an opinion as deeply flawed as *Cheffer*. The fact that Petitioners place such heavy emphasis on the *Cheffer* analysis says a great deal about the strength of their constitutional claims in this case.

junction effective. Both injunctions are justified by the content-neutral objective of "provid[ing] for the protection of the owners, staff and patients of the Clinic and to prevent the further disruption of the operation of the Clinic," J.A. 61, and the detailed provisions of the more recent injunction are narrowly drawn to achieve that purpose. Therefore, all provisions of the injunction easily survive constitutional scrutiny.²²

1. The Injunction Regulates Petitioners' Conduct, Not Their Ideas.

Petitioners rely heavily on this Court's recent decision in *R.A.V. v. City of St. Paul*, which reaffirmed the general proposition that "[c]ontent-based regulations are presumptively invalid." 112 S. Ct. 2538, 2542 (1992), see Petitioners' Brief 8-14. Respondents agree that content-based regulations of speech must receive strict scrutiny, see *Burson v. Freeman*, 112 S. Ct. 1846 (1992), but disagree that the principle is implicated in this case. The very decision cited by Petitioners as establishing the basic rule against content-based regulation of speech also held that the rule does not apply when the regulation addresses harmful conduct, as opposed to ideas. *R.A.V.*, 112 S. Ct. at 2544.

²² In their brief, Petitioners suggest that an injunction may not be premised on a time, place and manner rationale. Petitioners' Brief 21-22. They also argue that the injunction in this case is an impermissible prior restraint. Petitioners cite no decision striking down an injunction simply because it is based on a time, place or manner rationale, nor do they explain why the time, place or manner rationale should apply in all regulatory contexts except those involving injunctions. Petitioners also do not cite a single case holding that a narrowly tailored injunction of the sort issued in this case falls within the scope of this Court's prior restraint decisions striking down injunctions addressed to orderly public expression. "It is entirely proper . . . to draw a distinction between injunctive relief imposing time, place and manner restrictions upon a class of persons who have persistently and repeatedly engaged in unlawful conduct, on the one hand, . . . and an injunction that constitutes a naked prior restraint against a proposed march by a group that did not have a similar history of illegal conduct in the jurisdiction where the march was scheduled." *Hirsh v. City of Atlanta*, 495 U.S. 927, 927 (1990) (denial of stay) (Stevens, J. concurring).

This Court elaborated on the speech/content distinction in *Wisconsin v. Mitchell*, 113 S. Ct. 2194 (1993). In *Mitchell*, this Court upheld a Wisconsin statute enhancing penalties for crimes committed against victims selected on account of race, color, disability, sexual orientation, national origin, or ancestry. *Id.* at 2197. This Court held that "whereas the ordinance struck down in *R.A.V.* was explicitly directed at expression (i.e., 'speech' or 'messages') the statute in this case is aimed at conduct unprotected by the First Amendment." *Id.* at 2201 (citation omitted).

Likewise, the injunction in this case regulates conduct such as blocking traffic, J.A. 51, crowding around cars attempting to enter the Clinic parking lot, J.A. 52, 54, forcing patients to "run a gauntlet" in order to obtain medical care, J.A. 54, generating noise sufficiently loud to disturb patients undergoing medical treatment inside the Clinic, J.A. 54, and harassing the minor children of clinic workers, J.A. 53. It is impossible to argue seriously that any of these activities constitutes speech protected by the First Amendment. Like the individual and social harms addressed by Wisconsin's bias statute, the harms addressed by the injunction in this case are completely independent of Petitioners' beliefs. *See id.* at 2201 (state interest not based on "mere disagreement with offenders' beliefs or biases").

The fact that Petitioners' conduct is intended to communicate a message to the Clinic workers and patients does not insulate that conduct from reasonable regulations such as those embodied in the injunction. This Court has rejected "the view that an apparently limitless variety of conduct can be labeled 'speech' whenever the person engaging in the conduct intends thereby to express an idea." *United States v. O'Brien*, 391 U.S. 367, 376 (1968). Whether or not it is intended to communicate ideas, conduct may be prohibited if it threatens disorder or invades the rights of others. *Tinker v. Des Moines School District*, 393 U.S. 503, 513 (1969). "A group of demonstrators could not insist upon the right to cordon off a street, or entrance to a public building, and allow no one to pass who did not agree to listen to their exhortations." *Cox v. Louisiana*, 379 U.S. 536, 555 (1965). In this case, although there was substantial

evidence that Petitioners fomented disorder and threatened the rights of others, the trial court did not prohibit any of Petitioners' expressive conduct. The injunction issued by the court simply channeled Petitioners' conduct in a manner that reduced its harmful effects. Each section of the injunction is directed at different aspects of Petitioners' behavior, and therefore channels Petitioners' behavior in different ways. This does not violate Petitioners' First Amendment rights because this Court has rejected "the assumption that people who want to propagandize protests or views have a constitutional right to do so whenever and however and wherever they please." *Adderly v. Florida*, 385 U.S. 39, 47-48 (1966).

Section (3) of the injunction prohibits Petitioners and those acting in concert with them from coming within 36 feet of the Clinic. The main effect of this part of the injunction is to place protesters across the street from the Clinic. Just as "two parades cannot march on the same street simultaneously, and government may allow only one," *Grayned v. Rockford*, 408 U.S. 104, 115 (1972), Judge McGregor was justified in placing Clinic workers and patients on one side of Dixie Way, and protesters on the other. Extensive testimony was introduced at the trial concerning harassment of patients and Clinic workers by the protesters, J.A. 283, 542, which caused increased health risks for Clinic patients, J.A. 153, and resulted in other patients being turned away, J.A. 154-155. Based on this testimony, Judge McGregor reached the reasonable conclusion that placing the protesters on the other side of the street from the Clinic was necessary to protect access to the Clinic. This restriction is no different from those statutes, upheld by this Court, that criminalize picketing in a manner that interferes with ingress or egress to a courthouse. *See Cameron v. Johnson*, 390 U.S. 611 (1968); *Cox v. Louisiana*, 379 U.S. 559 (1965).

The other portions of the injunction are also focused on conduct rather than expression. Section (4) of the injunction prohibits Petitioners from making loud noises that can be heard inside the Clinic while medical procedures are taking place. This provision is justified by a long line of cases limiting noise that interferes with the rights of unwilling listeners nearby. *See Ward v. Rock Against Racism*, 491 U.S. 781 (1989); *Grayned v. Rockford*, 408 U.S. 104 (1972); *Kovacs v. Cooper*, 336 U.S. 77 (1949).

For similar reasons, Section (4) of the injunction permissibly restricts "images observable to . . . patients inside the Clinic," in light of testimony that protesters climbed atop the Clinic's fence to post signs with the names of patients and their spouses or companions. J.A. 538. These signs could be seen from inside the Clinic. J.A. 538, 542. The injunction does not ban these images altogether; the injunction simply prohibits placing the images in a location where they will traumatize patients at the time they are undergoing medical treatment. As this Court has held, while the same images would be permissible in other circumstances and in other locations, "[t]he crucial question is whether the manner of expression is basically incompatible with the normal activity of a particular place at a particular time." *Grayned*, 408 U.S. at 116.²³

Section (5) of the injunction prohibits Petitioners and those acting in concert with them from approaching people within 300 feet of the Clinic unless the target of the speech indicates a desire to communicate. Petitioners inaccurately characterize this provision as a total ban on handbilling. See Petitioners' Brief 23. In fact, this provision is a simple traffic regulation, justified by the need to "secure convenient use of the streets by other travelers, and to minimize the risk of disorder." *Cox v. New Hampshire*, 312 U.S. 569, 576 (1941) (upholding conviction for parading without a permit). This portion of the injunction would primarily affect Petitioners' ability to approach cars on U.S. Highway 1, which is the major traffic

²³ In *City Council of Los Angeles v. Taxpayers for Vincent*, 466 U.S. 789 (1984), this Court approved an ordinance prohibiting the posting of signs on public property as a legitimate means of addressing the "visual assault on the citizens of Los Angeles presented by an accumulation of signs posted on public property." *Id.* at 807. The visual assault addressed by the injunction in this case is much more direct, individualized and potentially harmful than the general and indirect aesthetic harm addressed by the ordinance in *Taxpayers for Vincent*. Also, the remedy here is much narrower than the total ban imposed by Los Angeles on displays on public property. Under the injunction, Petitioners may post their signs anywhere in the City of Melbourne except where they could directly and immediately harm patients undergoing medical procedures. Again, it is the harmful conduct, not the ideas, that is being regulated by this injunction.

artery that must be traveled to reach the residential street on which the Clinic is situated. See J.A. 65. Despite the evident dangers,²⁴ protesters routinely attempted to approach cars coming to the Clinic on the highway. J.A. 52. This portion of the injunction is therefore justified as a content-neutral safety measure, to protect passersby from the actions of overly aggressive protesters, and to protect the protesters themselves from the consequences of their dangerous behavior.

Section (6) of the injunction prohibits protesters from targeting the homes of Clinic workers with focused protests that are incompatible with the nature of a residential neighborhood. Petitioners argue that the injunction prohibits anyone from "discuss[ing] pro-life beliefs with another individual" within 300 feet of a targeted residence, and then assert that "[t]he injunction has instituted a six and one-half acre zone of silence punishable by the wrath of the court if the silence is broken." Petitioners' Brief 19. This does not accurately describe the terms of the injunction. The injunction prohibits "approaching, congregating, picketing, patrolling, demonstrating or using bullhorns or other sound amplification equipment within three-hundred (300) feet of the [Clinic worker's] residence," and also prohibits blocking, barricading, or attempting to block the exit, entrance, or driveway of the worker's residence. J.A. 59-60. Nothing in the injunction prohibits Petitioners from discussing their views with other persons not associated with the Clinic, nor does the injunction impose a "six and one-half acre zone of silence."

In *Frisby v. Schultz*, 487 U.S. 474 (1988), this Court upheld an ordinance directed at precisely the same type of behavior as Petitioners engaged in here. The ordinance banned all picketing "before or about the residence or dwelling of any individual in the Town of Brookfield, [Wisconsin]." *Id.* at 477. Both the injunction and the

²⁴ Petitioners' own witness described the dangers posed by picketing and leafletting on this highway. J.A. 464, 483. Captain Allgeyer of the Melbourne Police Department testified that it would be "deadly" to hand out literature on U.S. Highway 1. J.A. 313. He further testified about his concern stemming from an incident in which a child almost got hit by a car. J.A. 259.

Brookfield ordinance prohibit conduct intended to harass clinic workers in order to convince those workers to cease their work with the Clinic. *See Id.* 487. Both the ordinance and the injunction seek to provide some protection for a captive, unwilling audience in the sanctity of the home. "The resident is figuratively, and perhaps literally, trapped within the home, and because of the unique and subtle impact of such picketing is left with no ready means of avoiding the unwanted speech." *Id.*

If anything, this is a more compelling case than *Frisby*. In *Frisby*, the picketing had been sporadic and peaceful, and never involved any obstruction of the streets or disorderly conduct. There is no indication in *Frisby* that any threats were made to the doctor whose activities gave rise to the Brookfield ordinance. In this case, on the other hand, the picketing and demonstrations in front of the Clinic workers' homes were raucous, with protesters approaching the workers, "carrying signs, walking up and down on the sidewalk or street in front of the residence, shouting at passers-by, contacting (ringing the doorbells of) neighbors, and providing literature identifying the clinic employee as a 'baby killer.'" J.A. 53. The Clinic doctor was implicitly threatened by one of the protesters, at a time when a physician working at a Pensacola clinic had just been shot and killed by protesters. J.A. 54-55. Protesters distributed "Wanted" and "Warning" posters identifying the Clinic's doctor by name. J.A. 92. Other Clinic workers also received direct threats, J.A. 107, 555-56, and one Clinic worker was identified by name and told by a protester that "I pray God strikes you dead now." J.A. 556.²⁵

²⁵ Portions of Sections (5), (7) and (8) prohibit threats, harassment and intimidation. To this extent, the injunction is justified by the rule that threats are entirely unprotected by the First Amendment. *See R.A.V. v. City of St. Paul*, 112 S. Ct. at 2546; *Watts v. United States*, 394 U.S. 705, 707 (1969) (upholding statute criminalizing threats against the President). Although threats usually take the form of pure speech, they are more akin to conduct rather than expression because they do not communicate ideas or attempt to convince listeners through intellectual persuasion.

To protect the workers and patients, Judge McGregor included several provisions prohibiting protesters from threatening or harassing individuals

In perhaps the most insensitive invasion of residential privacy, protesters went to the home of a nurse who was at the Clinic, approached her minor children when they were home alone, and screamed at the children to stop their mother from killing babies. J.A. 505-09. Nurse Doyle's terrified little girls were not willing participants in a debate about abortion rights. They were frightened children who had been subjected against their will to a group of strangers calling their mother a murderer. There is no serious question on these facts that, as in *Frisby*, *see* 487 U.S. at 477, the injunction was necessary to preserve public safety, prevent emotional distress to residents, and protect the tranquility and privacy

associated with the Clinic. *See* J.A. 60. Petitioners object to these provisions by formalistically parsing the terms of the injunction, *see e.g.*, Petitioners' Brief 12, 29, but seem oblivious to the overriding purpose of these provisions. For example, Judge McGregor included Section (5) in response to extensive evidence that protesters were aggressively surrounding cars coming to the Clinic, shouting insults and epithets to the occupants, attempting to throw literature inside moving cars, and generally attempting to intimidate patients and threaten workers and volunteers associated with the Clinic. J.A. 53-55.

The logical response to such behavior by Clinic workers and patients was not the reasoned "listeners' reaction to speech" that this Court referred to in the portion of *Forsythe County v. Nationalist Movement*, 112 S. Ct. 2395, 2403 (1992), on which Petitioners rely in their attack on this portion of the injunction. Rather, the reaction of Clinic workers and patients to this behavior was abject fear. This fear was manifested in the patients by increased blood pressure, greater tension and increased risk of medical complications. J.A. 54. It was manifested in workers by feelings of intimidation and anxiety, which led some workers and the doctor to quit working for the Clinic altogether. J.A. 55. These effects — which had nothing to do with the intellectual merits of Petitioners' arguments — were exactly what Petitioners and their fellow protestors sought. In other words, the threats and intimidation worked.

Against this background, it was unfortunately necessary for the judge to include in the injunction a provision instructing Petitioners and those acting in concert with them that individuals "shall have the absolute right to leave or walk away and the [Petitioners] shall not accompany such [individuals], encircle, surround, harass, threaten or physically or verbally abuse those individuals who choose not to communicate with them." J.A. 59.

residential neighborhood. See *Rowan v. Post Office Dept.*, 397 U.S. 728, 737 (1970) ("Nothing in the Constitution compels us to listen to or view any unwanted communications, whatever its merits . . . The ancient concept that 'a man's home is his castle' into which 'not even the King may enter' has lost none of its vitality, and none of the recognized exceptions includes any right to communicate offensively with another.")

As this brief description of the evidence indicates, each provision of the injunction was addressed to a specific problem created by the conduct of Petitioners and those acting in concert with them. A common theme runs through every section of the injunction: The injunction is aimed not at the ideas expressed by the protesters, but at the harmful manner in which they expressed those ideas. Therefore, Petitioners' concerns about content-based discrimination are misplaced, and none of the injunction's provisions violate the First Amendment.

2. The Injunction Seeks to Regulate Only the Secondary Effects, Not the Content, of Petitioners' Speech.

The injunction also should be upheld because it is aimed at regulating the "secondary effects," rather than the content of speech. The secondary effects rationale permits the regulation of an identifiable category of speech if the regulation is justified "without reference to the content of the regulated speech." *City of Renton v. Playtime Theaters, Inc.*, 475 U.S. 41, 48 (1986) (citation omitted) (upholding zoning regulation that applied only to adult movie theaters). In this respect, the secondary effects rationale complements the speech/conduct distinction discussed in the previous section, since the main point of a secondary effects regulation is to address the non-communicative aspects of expression. Likewise, many of the secondary effects targeted by an injunction such as the one at issue in this case will result from the conduct of Petitioners, not their expression.

However, the secondary effects rationale goes beyond the speech/conduct distinction because it permits even the incidental

regulation of pure speech if the regulation is justified without regard to the content of that speech.

We spoke in [*Renton*] only of secondary effects of speech, referring to regulations that apply to a particular category of speech because the regulatory targets happen to be associated with that type of speech. So long as the justifications for regulation have nothing to do with content, . . . we concluded that the regulation was properly analyzed as content neutral.

Boos v. Barry, 485 U.S. 312, 320 (1988) (plurality opinion) (emphasis omitted). See also *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 298 n.8 (1984) ("Reasonable time, place, or manner restrictions are valid even though they directly limit oral or written expression.").

Although Petitioners cite *Boos* repeatedly to support their position in this case, see Petitioners' Brief 12, 14-16, 18, 19, 30, they fail to note the crucial difference between the regulation struck down in that case and the injunction at issue here. In *Boos*, the Court struck down a prohibition on placing signs within 500 feet of an embassy because the alleged "secondary effect" offered to justify the prohibition depended entirely on the listener's agreement or disagreement with the content of the signs. *Boos*, 485 U.S. at 321 (plurality opinion). However, Justice O'Connor specifically noted several content-neutral secondary effects that *would* justify a regulation on signs placed near embassies, including "congestion, . . . interference with ingress or egress, . . . visual clutter, [and] the need to protect the security of embassies." *Id.*

The effects to which Judge McGregor addressed the injunction in this case were precisely the sort of content-neutral secondary effects noted by Justice O'Connor in *Boos*. These effects included such things as the threat to patients' health caused by the surging crowds of demonstrators, the demonstrators' blockage of the Clinic entrance, the resignation of the Clinic's doctor and a nurse as a result of constant harassment by protesters, traffic congestion outside the Clinic, and the disruption of Clinic workers' home lives by

residential picketing and demonstrations. As demonstrated in the previous section, many of these effects occur because Petitioners and those acting in concert with them have engaged in unprotected conduct that may be regulated by the state. However, even if some of Petitioners' actions that cause these effects constitute expression, the harmful secondary effects of such expression justify the narrowly drawn provisions of this injunction.

B. THE INJUNCTION IS NARROWLY TAILORED TO SERVE A SIGNIFICANT GOVERNMENTAL INTEREST.

A time, place, and manner restriction of speech is permissible only if it is "narrowly tailored to serve a significant governmental interest." *Clark v. Community for Creative Non-violence*, 468 U.S. 288, 293 (1984). Although a time, place, and manner regulation must be narrowly tailored, "it need not be the least restrictive or least intrusive means of [serving the government's interest]. Rather, the requirement of narrow tailoring is satisfied 'so long as the . . . regulation promotes a substantial government interest that would be achieved less effectively absent the regulation.'" *Ward v. Rock Against Racism*, 491 U.S. 781, 798-99 (1989)(citation omitted).

The preceding sections have discussed the general nature of the governmental interests justifying the injunction at issue in this case. The Florida Supreme Court summarized these interests in its unanimous opinion upholding this injunction:

A woman's freedom to seek lawful medical or counseling services in connection with her pregnancy constitutes a clear personal right under both our state and federal constitutions. See *Roe v. Wade*, 410 U.S. 113 (1973); *In re T.W.*, 551 So. 2d 1186, 1193 (Fla. 1989). Our state also has strong interests in . . . promoting the free flow of traffic on public streets and sidewalks, and in protecting property rights of all Florida citizens.

[In addition], 'the protection of residential privacy' constitutes 'a significant governmental interest' and . . . '[o]ne important aspect of residential privacy is protection of the unwilling listener.' [quoting *Frisby v. Schultz*, 487 U.S. 474, 484 (1988)].

We conclude that the reasoning underlying the governmental interest in residential privacy applies even more convincingly to the state interest in ensuring medical privacy. Florida citizens are entitled to both unimpeded access to licensed medical facilities and freedom from unwanted confrontations and communications when undergoing lawful medical treatment, particularly where the effect of such confrontations is to place the patient's health and safety in jeopardy.

Operation Rescue v. Women's Health Ctr., Inc., 626 So. 2d 664, 672 (Fla. 1993).

The restrictions imposed by this injunction on Petitioners speech are narrowly drawn to achieve these interests.²⁶ Indeed, there is

²⁶ Judge McGregor's injunction is no broader than injunctions entered in similar cases by other courts throughout the country. For examples of injunctions creating buffer zones around clinics, see *Northeast Women's Ctr., Inc. v. McMonagle*, 939 F.2d 57, 64 (3d Cir. 1991) (peaceful picketing within 500 feet of center limited to six persons on a designated side); *Portland Feminist Women's Health Ctr. v. Advocates for Life, Inc.*, 859 F.2d 681, 684 (9th Cir. 1988) (prohibited demonstrations and leafletting in a zone extending out from the center of the front door to the curb and 12½ feet on either side of this line); *Pro-Choice Network v. Project Rescue Western N.W.*, 799 F. Supp. 1417, 1434 (W.D.N.Y. 1992) (with the exception of two sidewalk counselors, demonstrators prohibited from coming within 15 feet of the clinic's entrances and 15 feet from persons and vehicles approaching the clinic); *Horizon Health Ctr., v. Felicissimo*, 622 A.2d 891, 896 (N.J. Super. Ct. App. Div. 1993) (restriction limited demonstrators to the "sidewalk on the western side of [the street] opposite [the center]"), cert. granted, 634 A.2d 527 (1993); *Fargo Women's Health Org., Inc. v. Lambs of Christ*, 502 N.W.2d 536, 537 (N.D. 1992) ("peaceful picketing" limited during business hours to two persons within

substantial evidence that the judge had no option other than this injunction to remedy the significant governmental interests in protecting the Clinic's patients and workers. Before entering the injunction at issue here, the judge determined that Petitioners and those acting in concert with them had routinely violated a previous injunction containing broader and more general language. J.A. 50-51. The judge also heard testimony that police were reluctant to enforce an injunction without clear lines demarcating the area in which protests were allowed. J.A. 258. Finally, the judge was confronted with Petitioners who testified that they were willing to violate the law if necessary to do God's will. J.A. 623. Thus, the judge was forced to resort to an injunction containing specific provisions, which would give all parties clear guidance and protect the legitimate interests of everyone.

Section (3) of the injunction simply separates the Clinic workers

100 feet of the clinic property); *Planned Parenthood Ass'n v. Holy Angels Catholic Church*, 765 F. Supp 617, 626 (N.D. Cal. 1991) (prohibited demonstrating, picketing, leafletting or counseling within 25 feet of any clinic entrance); *Bering v. SHARE*, 721 P.2d 918, 929 (Wash. 1986) (restrained picketers' activities "to Stevens Avenue, away from the [medical] building's entrance and the sidewalk fronting the building"), *cert. dismissed*, 479 U.S. 1050 (1987). For examples of injunctions limiting residential picketing, see *Northeast Women's Ctr.*, 939 F.2d at 67, 68 n.16 (3d Cir. 1991) (upheld 2500 feet prohibition on use of sound amplification equipment and remanded for possible modification 2500 feet prohibition on residential picketing because record did not support restriction greater than 500 feet); *Kaplan v. Prolife Action League*, 431 S.E.2d 828, 846 (N.C. Ct. App. 1993) (banned "picketing, parading, marching or demonstrating" within 300 feet of center line of physician's street); *Murray v. Lawson*, 624 A.2d 3, 8 (N.J. Super. Ct. App. Div.) (prohibited demonstrating within 300 feet of physician's residence), *cert. granted*, 627 A.2d 1149 (1993); *Boffard v. Barnes*, 624 A.2d 1, 2 (N.J. Super. Ct. App. Div.), *cert. granted*, 627 A.2d 1150 (1993); *Dayton Women's Health Ctr. v. Enix*, 589 N.E.2d 121, 124 (Ohio Ct. App. 1991) (prohibited picketing within the viewing distance of the homes of the workers and the patients of the clinic), *appeal dismissed*, 583 N.E.2d 971 (1992), *cert. denied sub nom. Sorrell v. Dayton Women's Health Ctr., Inc.*, 112 S. Ct. 3033 (1992).

and patients from the protesters, ensuring that Petitioners can have their say without interfering in the interests of others, and simultaneously guaranteeing that the public can pass down a public roadway without being confronted with an unruly crowd flowing into the street.

Section (4) of the injunction prohibits sights and sounds that would disturb patients undergoing surgery. Protesters can sing, chant, whistle, shout, yell, use bullhorns, etc., (subject to the application of Melbourne's public nuisance ordinances) at all times of day except the brief period during which patients are undergoing surgery or recovering from surgery. Petitioners cannot claim that this narrow provision violates their First Amendment rights without simultaneously casting into doubt every hospital quiet zone in the country.

As noted previously, Sections (5), (7), and (8) of the injunction protects Clinic patients and workers from precisely the kinds of individualized threats and harassment that Petitioners and those acting in concert with them had repeatedly inflicted upon the patients and workers in the past. Likewise, Section (6) of the injunction, like the ordinance in *Frisby*, is specifically crafted to eliminate the "'evil' of targeted residential picketing," *Frisby*, 487 U.S. at 487, of which the Court also had abundant evidence.

In light of the extensive testimony in this case, the trial court's injunction easily meets this Court's requirement that the "regulation promotes a substantial government interest that would be achieved less effectively absent the regulation." *Ward v. Rock Against Racism*, 491 U.S. at 799. The Petitioners attempt to evade this conclusion by once again mischaracterizing the scope of the injunction. Petitioners' Brief 23. Petitioners apparently find two "fundamental flaw[s]" in the Florida Supreme Court's opinion. First, in contrast to the holding of the Florida Supreme Court, Petitioners argue that their picketing is "not solely directed at the Clinic, workers, and patients, but is directed to the public at large." *Id.* This contention is not supported by the record in this case, nor, even if it were true, does it undercut the narrow terms of the in-

junction. The evidence introduced at trial overwhelmingly indicates that Clinic workers and patients were intentionally targeted and repeatedly harassed by Petitioners and other protesters. Also, the injunction is crafted in a way that leaves Petitioners free to address their arguments to the public. The buffer zones established in Sections (3), (5), and (6) of the injunction protect Clinic workers and patients. These sections leave Petitioners free to address their arguments to other members of the public without restriction.

Petitioners' second "fundamental flaw" is based on their misreading of the injunction, which they argue contains a "flat ban on singing, chanting, images observable, and consent speech." *Id.* In contrast to Petitioners' interpretation, the explicit terms of Section (4) of the injunction permit singing, chanting, and images observable during the hours in which surgical procedures or recovery takes place, now two days a week on Wednesdays and Saturdays. None of these activities is "flatly banned." Likewise, the injunction does not ban "consent speech" or the "distribution of literature absent 'invited contact.'" *Id.* The injunction merely protects patients and workers from aggressive, threatening, and even dangerous behavior while those individuals are in close proximity to the Clinic or their homes.

C. THE INJUNCTION ALLOWS PETITIONERS AMPLE ALTERNATIVE AVENUES TO COMMUNICATE THEIR IDEAS.

In their brief, Petitioners make the unexceptionable claim that a complete ban of all speech opposing abortion would fail First Amendment scrutiny. Petitioners' Brief 19. This is true, but irrelevant to the present case. The injunction at issue here does not impose a complete ban on all speech objecting to abortion. Although the injunction does channel Petitioners' speech, it leaves open many different avenues for getting their points across effectively. As this Court stated in *Ward v. Rock Against Racism*, "[t]hat the city's limitations on volume may reduce to some degree the potential audience for respondent's speech is of no consequence, for there has been no showing that the remaining avenues of communication are inadequate." *Ward*, 491 U.S. at 802.

In this case, the thirty-six foot buffer zone around the Clinic leaves Petitioners substantial opportunities to communicate their views.²⁷ Petitioners' witness Unterberger acknowledged that there was a parking lot across the street from the Clinic where interested persons could "pull in" and take literature. J.A. 471. Literature was also available throughout Melbourne at "counseling clinics" operated by anti-abortion groups. J.A. 471. The street on which the Clinic is located is a horseshoe, so all cars approaching the Clinic reach it by turning off U.S. Highway 1. J.A. 304. Therefore, protesters standing next to the Clinic, where the Clinic abuts U.S. Highway 1, can communicate with people in cars approaching the Clinic. J.A. 305. Protesters standing across the narrow, residential street from the Clinic could also be heard and seen clearly from the Clinic parking lots. J.A. 260, 305. In fact, Petitioners' witness Unterberger acknowledged that the restriction incorporated in the injunction was narrow enough to place the protesters at a distance no greater than ten to twelve feet from cars approaching and leaving the Clinic. J.A. 486. In fact, the protesters can be within a few inches of cars going east on Dixie Way. *See* J.A. 65.

The residential buffer zone likewise offers Petitioners ample alternative means of communicating their views. As in *Frisby*, "[p]rotesters have not been barred from the residential neighborhoods. They may enter such neighborhoods, alone or in groups, even marching. . . . They may go door-to-door to proselytize their views. They may distribute literature in this manner . . . or through the mails. They may contact residents by telephone, short of harassment." *Frisby*, 487 U.S. at 484. Also as in *Frisby*, the residential buffer zone in this case is limited, restricting only targeted picketing focused on a particular house. Therefore, "the limited nature of the prohibition makes it virtually self-evident that ample alternatives remain." *Id.* at 483.

The other provisions of the injunction also leave obvious alternative avenues available to Petitioners. The prohibition on obtrusive sights and sounds applies only during hours when surgery and recov-

²⁷ The zone for the east side of the property is only five feet and the property to the west and north of the Clinic is residential.

ering from surgery are taking place. J.A. 59. The prohibition on harassment of persons seeking the services of the Clinic within 300 feet of the Clinic does not prevent Petitioners from discussing their views with willing listeners, and permits Petitioners to communicate their views in any manner they want when not within proximity of the Clinic. Nothing prohibits the protesters from addressing these individuals outside the narrow buffer zones, debating them publicly in a neutral forum, or addressing them indirectly through advertisements, editorials, and their continued daily presence directly across the street from the Clinic. The First Amendment guarantees the right to speak; it does not guarantee a captive and receptive audience.

In short, even if Petitioners comply to the letter with every provision of this injunction, they are still fully capable of expressing their views effectively to the world at large, and even to the Clinic workers and patients passing no more than ten to twelve feet from where the protesters are standing. Without question, the injunction limits the methods Petitioners may use to communicate their views. The injunction denies Petitioners the ability to continue aggressively confronting Clinic patients, shouting epithets at Clinic patients while those patients are undergoing surgery, surrounding the cars of persons coming to the Clinic, and harassing the children of Clinic workers at the workers' homes. But as this Court has pointed out, "[T]he First Amendment does not guarantee the right to communicate one's views at all times and places or in any manner that may be desired." *Heffron v. International Society for Krishna Consciousness*, 452 U.S. 640, 647 (1981).²⁸

²⁸ In addition to their free speech claims, Petitioners also contend that the injunction violates their right of free association under the First Amendment. The extent of Petitioners' right of free association depends on the extent of their right to free speech. This Court has recognized a right of free association "for the purpose of engaging in those activities protected by the First Amendment — speech, assembly, petition for the redress of grievances, and the exercise of religion. The Constitution guarantees freedom of association of this kind as an indispensable means of preserving other individual liberties." *Roberts v. United States Jaycees*, 468 U.S. 609, 618 (1984). In this case, the underlying right claimed by

II.

THE INJUNCTION IS NOT OVERBROAD.

Petitioners' claim that the injunction is overbroad misconceives the very concept of overbreadth. In challenging the injunction's restriction of their own proposed activities, Petitioners fall outside the purpose and scope of the overbreadth doctrine. Moreover, even if Petitioners' claim can be entertained, their allegations of theoretical and marginal overreaching fail to meet this Court's requirement of real and substantial overbreadth.

A. PETITIONERS' CLAIM THAT THE INJUNCTION BARS BEHAVIOR IN WHICH THEY SEEK TO ENGAGE FAILS TO STATE A CLAIM FOR OVERBREADTH.

Petitioners' attack on various facets of the injunction's reach constitutes an "as applied" challenge, not a claim of overbreadth. The overbreadth doctrine voids a law in its entirety if the law "does not aim specifically at evils within the allowable area of [governmental] control, but . . . sweeps within its ambit other activities that . . . constitute an exercise" of First Amendment rights. *Thornhill v. Alabama*, 310 U.S. 88, 97 (1940). Permitting parties whose own conduct may not be protected to mount a facial challenge serves "the interest in preventing an invalid statute from inhibiting the speech of third parties who are not before the Court." *City Council of Los Angeles v. Taxpayers for Vincent*, 466 U.S. 789, 800 (1984).

Petitioners is the right of free speech. Thus, if restrictions — such as reasonable time, place and manner regulations — may be imposed on the underlying right of free speech, the right of free association is necessarily limited to the same extent. The injunction in this case does not deny anyone their rights "merely because an individual belonged to a group," *NAACP v. Claiborne Hardware Co.*, 458 U.S. 886, 920 (1982), nor does it make "peaceable assembly for lawful discussion" a crime. *De Jonge v. Oregon*, 299 U.S. 353, 365 (1937). As shown in this section, the injunction simply limits the extent to which Petitioners and those acting in concert with them may impede access to medical care, obstruct traffic, harass Clinic personnel, and engage in other unprotected activities. If Petitioners have no constitutional right to do these things individually, they certainly have no constitutional right to do these things in a large group.

In this instance, however, allowing Petitioners to invoke the rights of others would not advance that interest. It is Petitioners and those acting in concert with them, not hypothetical third parties, who wish to penetrate the three-hundred foot buffer zone, Petitioners' Brief 29, harass doctors and employees at the Clinic, *id.*, and otherwise engage in activities prohibited by sections (3) through (9) of the injunction. *Id.* at 27-30. See *Brockett v. Spokane Arcades, Inc.*, 472 U.S. 491, 504 (1985) (action for invalidation of entire statute inappropriate where "the parties challenging the statute are those who desire to engage in protected speech that the overbroad statute purports to punish"). Only to the extent that the injunction forbids those who may later act "in concert or participation with" Petitioners does the order restrict persons who cannot currently be identified. However, since such individuals would be challenging one or more of the same restrictions that Petitioners assert are unconstitutional, their claims would be identical to those now made by Petitioners. Thus, only an as applied challenge is appropriate here. See *Taxpayers for Vincent*, 466 U.S. at 801 (refusing to entertain facial challenge based on overbreadth where there is "nothing in the record to indicate that the ordinance will have any different impact on third parties' interests in free speech" than it has on parties before the Court).

B. THE INJUNCTION AS A WHOLE DOES NOT VIOLATE THE PROHIBITION OF "REAL AND SUBSTANTIAL" OVERBREADTH.

A law will not be struck down as overbroad simply because a small number of its theoretical invalid applications can be imagined. Rather, legislative overreaching has proved fatal to the entire statutory scheme only where the overbreadth has been "not only . . . real, but substantial as well, judged in relation to the statute's plainly legitimate sweep." *Broadrick v. Oklahoma*, 413 U.S. 601, 615 (1973). As already discussed, Judge McGregor's injunction is narrowly tailored to curb the abuses that prompted his order, see *supra* at I-B, and therefore necessarily is not overbroad. However, even if the injunction is found to be imperfectly tailored to combat these

abuses, the slight extent to which the order may exceed its permissible scope does not approach the high level of "real and substantial" overbreadth required for invalidation.

Petitioners themselves tacitly acknowledge that the core of the injunction does not bar protected activity. They concede that the court may prohibit them from entering the premises and property of the Clinic. Petitioners' Brief 27. They agree that the order properly bars them from "blocking, impeding, inhibiting, or in any other manner obstructing or interfering with access to, ingress into and egress from any building or parking lot of the Clinic." *Id.* Nor do they challenge the order's authorization of efforts to identify those persons engaged in a phone blockade and jamming of the Clinic's phone lines. Indeed, Petitioners do not even contend that the injunction's remaining restrictions cover only protected activity. Rather, they argue that some portions of these restrictions prohibit behavior in which they have the right to engage. See *id.* at 27-30.

Thus, even if Petitioners have correctly identified potential impermissible applications of the order, this marginal infringement on protected activity does not rise to the "embracing sweep . . . over protected expression," *New York v. Ferber*, 458 U.S. 747, 771 (1982), that triggers total invalidation under overbreadth. Specifically, it may be possible (though Respondents deny) that a buffer zone of somewhat smaller dimensions than the three hundred foot area imposed by sections (5) and (6) would serve the purpose of the order equally well. Similarly, while the prohibition in section (4) of "singing, chanting, whistling, shouting, yelling, use of bullhorns, auto horns, sound amplification equipment or other sounds or images observable to or within earshot of the patients inside the Clinic" during surgery and recovery periods clearly promotes the well-being of patients, it is conceivable (though not realistically within the operative reach of the order) that some type of sign could be displayed to patients on the Clinic property or noise emitted that patients could detect without harm to their treatment. There may even be forms of "intimidating," "crowding," "harassing," and "encouraging" of violation of the order, see Petitioners' Brief 29 (arguing that these terms are overbroad), that are shielded by the

First Amendment. In each of these provisions, however, the legitimate applications of the prohibition greatly exceed the instances in which the provision arguably bars protected expression. The valid reach of these and other disputed provisions, together with those parts of the injunction which Petitioners have not questioned, far eclipse the relative handful of ways in which the order colorably gives rise to First Amendment challenges. Where a regulation thus "covers a whole range of easily identifiable and constitutionally proscribable conduct," *Osborne v. Ohio*, 495 U.S. 103, 112 (1990) (quoting *New York v. Ferber*, 458 U.S. 747, 770 n.25 (1982)), and conversely affects protected expression only "at its margins," *Osborne*, 495 U.S. at 112, the Court has declined to administer the "strong medicine"²⁹ of facial invalidation.³⁰

Numerous decisions illustrate this Court's refusal to impose the severe sanction of facial invalidation at the behest of those who, like Petitioners, nip at the edges of a basically valid regulation. In *Grayned v. Rockford*, 408 U.S. 104 (1972), for example, the Court rejected an overbreadth challenge to an antinoise ordinance forbidding a person while on grounds adjacent to a building in which a school is in session to "make or assist in the making of any noise or diversion which disturbs or tends to disturb the peace or good order" of that school." *Id.* at 108. The City of Rockford ordinance could have been literally construed to outlaw comments on religion, social issues, and public affairs audible to and "disturbing" a single student or teacher at any school, just as Petitioners argue that section (4) of Judge McGregor's injunction "could literally prevent bumper stickers on parked cars, the wearing of lapel pins, or the display of a picket sign" observable by someone within the Clinic

²⁹ *Broadrick*, 413 U.S. at 613.

³⁰ By contrast, the ordinance struck down as overbroad in *Houston v. Hill*, 482 U.S. 451 (1987), on its face clearly "criminalize[d] a substantial amount of constitutionally protected speech." *Id.* at 466. The statute made it "unlawful for any person to assault, strike or in any manner oppose, molest, abuse or interrupt any policeman in the execution of his duty, or any person summoned to aid in making an arrest." *Id.*, at 455.

during the hours of surgery. Petitioners' Brief 29.³¹ The *Grayned* Court, however, did not base its holding on such hypothetical and marginal applications of the ordinance. Instead, the Court upheld the ordinance in light of the city's "compelling interest in having an undisrupted school session conducive to the students' learning." *Grayned*, 408 U.S. at 119. Similarly, here, the injunction is designed to promote the compelling interest of safeguarding the physical and mental health of those seeking the services of the Clinic, and like *Grayned*'s ordinance "does not unnecessarily interfere with First Amendment rights." *Id.*

Broadrick v. Oklahoma, 413 U.S. 601 (1973), similarly rejects the reliance on extreme and literal applications that characterizes Petitioners' argument.³² See, e.g., Petitioners' Brief 28 (arguing that section (3) of the injunction requires property owners near the Clinic to "screen all guests to insure no pro-life persons are invited who might wear an article of clothing advocating pro-life issues"). *Broadrick* involved an overbreadth challenge to a state statute limiting the political activities of its classified civil servants. The statute provided that employees could not "directly or indirectly, solicit, receive, or in any manner be concerned in soliciting or receiving any assessment . . . or contribution for any political organization, candidacy or other political purpose," and were prohibited from "tak[ing] part in the management or affairs of any political campaign, except . . . privately to express his opinion and to cast his vote." *Broadrick*, 413 U.S. at 605-06. It does not require a fertile imagination to conceive of many ways in which a zealous and literal-minded official might have enforced the statute to penalize protected activity. Rather than letting this possibility govern the outcome, however, the Court canvassed the many valid applications of the statute, *id.* at 616-17, and concluded that the statute must not "be

³¹ The Petitioners do not explain how some of these objects are to be hoisted over the hedges and privacy fences, for this is the only area which can be seen from within the Clinic.

³² Petitioners' discussion of the injunction ignores the actual terms of the injunction, which reach only the images observable within the Clinic during surgical hours. Moreover, Petitioners' far-fetched examples do not account for the hedges and the privacy fences which are around the Clinic.

discarded in toto because some persons' arguably protected conduct may or may not be caught or chilled by the statute." *Id.* at 618. Likewise, Judge McGregor's injunction need not be struck down in its entirety when "whatever overbreadth may exist" can "be cured through case-by-case analysis of the fact situations to which its sanctions, assertedly, may not be applied." *Id.* at 615.³³

The actual conditions that prompted Judge McGregor's order make it especially inappropriate to rest invalidation on the order's theoretical application to innocuous activity. The record repeatedly discloses the discrepancy between the abuses that Judge McGregor sought to curb and fears professed by Petitioners and amici that the order will penalize benign and protected behavior. For example, to the extent that the injunction reduces the opportunities for "sidewalk counseling," see Brief for The Southern Center for Law & Ethics, et al. at 6-8, it is not a "nonthreatening," "friendly, helpful, and nonoffensive" approach, *id.* at 5-6, at which the order is aimed and which is said to characterize this activity. Rather, the order was provoked by and seeks to prevent the recurrence of conduct, including stalking, that has endangered the health of the Clinic's patients and struck fear in the hearts of patients, doctors, and other employees: e.g., yelling and screaming at those entering the Clinic, J.A. 203; chasing a doctor and pointing a finger toward him in the form of a gun, J.A. 190-191; converging on cars approaching the Clinic and shouting out the names of passengers whose identities have been traced through their prior presence at the Clinic, J.A. 538-42. Similarly, nothing in the history

³³ *New York v. Ferber*, 458 U.S. 747 (1982), offers yet another illustration of the principle that parties subject to a law's legitimate reach may not evade the law by identifying a small number of possible invalid applications. *Ferber* upheld a criminal statute prohibiting knowing promotion of sexual performances by children under sixteen. *Id.* at 749. While acknowledging that the statute's ban could fall on some arguably protected activity "ranging from medical textbooks to pictorials in the National Geographic," *id.* at 773, the Court rejected an overbreadth challenge largely because the statute's "legitimate reach dwarfs its arguably impermissible applications." *Id.*

of this dispute or the content of the order indicates any intent to turn "[v]irtually the entire City of Melbourne . . . into a no speech zone." Petitioners' Brief 29. Instead, the order seeks to vindicate the state's compelling interest in preventing Petitioners and others from disrupting the operation of a medical facility. While the injunction admittedly covers a substantial range of activity, the order's scope must be viewed against repeated disregard for earlier orders, J.A. 393, Petitioner Martin's avowed intent to block abortions in Brevard and Seminole County, J.A. 6-8, and Petitioners' leadership of a group that expresses its intent to ignore state law that interferes with its "rescue" mission, J.A. 623.

The gap between Petitioners' version of the order's reach and the actual operation of the injunction is particularly evidenced by their extended criticism of the order's application to those who act "in concert" with Petitioners. See Petitioners' Brief 26-28. Petitioners' support for this contention is as dubious as their standing to raise it.³⁴ As proof of the alleged overbreadth of this provision, Petitioners cite the arrest of Mr. Quintero, who testified that "he had no idea who the parties were in the Injunction, that he did not belong to any group but was 'just a normal Christian that went to pray on the sidewalk.'" *Id.* at 26. If indeed Mr. Quintero had no notice of the injunction, then this provision could not be enforced against him. Petition for Writ of Certiorari at A-22 (authoritative construction of Florida Supreme Court). Conversely, the trial judge would be acting within permissible discretion in refusing to credit the representations underlying Mr. Quintero's statement: that he chose this isolated strip as a place to pray without any prior consultation with "any group" also praying there (for, *inter alia*, the death of doctors employed by the Clinic, J.A. 555-56); that while aware of the injunction he "had no idea who the parties were"; and that once upon the scene he was either oblivious to the aims of those seeking to obstruct the operation of the Clinic or had no desire to assist them in their enterprise. In any event, Mr. Quintero's testimony was offered in a preliminary hearing at which Judge McGregor made no final determinations, J.A. 69-70, and

³⁴ See Brief of the AFL-CIO at 9-10 (validity of "in concert" provision not properly before Court).

therefore cannot be relied upon to demonstrate the allegedly impermissible reach of the injunction.

Petitioners also appear to endorse a categorical rule that injunctions binding upon those "acting in concert or participation with" named parties are inherently unconstitutional when "applied to non-objective speech such as is found in Sections (3) through (9)." Petitioners' Brief 27 n.19. Petitioners cite no authority for this novel proposition. On the contrary, the "in concert" provision is "so standard that it is expressly sanctioned by the Federal Rules of Civil Procedure," Brief of AFL-CIO at 6 (citing Fed. R. Civ. P. 65(d)), without the sort of qualification that Petitioners have invented.³⁵

The necessity of such a provision is especially obvious in the circumstances of this case. Petitioners apparently have an abundant if not endless supply of "John Does" to assist them in their effort to obstruct the operation of the Clinic. See J.A. 66-77. Thus, a requirement that the injunction be confined to parties identified in advance would severely hinder or even defeat the trial judge's ability to protect the operation of the Clinic and the safety of the patients, doctors, and employees who seek to enter it.

The Florida Supreme Court's clarification of "in concert or participation with" further demonstrates why the injunction should not be struck down for overbreadth. This Court regularly upholds potentially overbroad statutes and ordinances that have received a narrowing construction by state courts. *E.g.*, *Osborne v. Ohio*, 495 U.S. 103, 120 (1990); see also *Frisby v. Schultz*, 487 U.S. 474, 483 (1988) (Court's interpreting ban on residential picketing to apply only to picketing directed at a single residence). It is only when state courts have neither supplied a narrowing construction nor are likely to that the Court has proceeded to the drastic remedy of facial invalidation. See *Houston v. Hill*, 482 U.S. 451, 469-71 (1987); *Erznoznik v. City of Jacksonville*, 422 U.S. 205, 216 (1975). Here, in light of the obvious purpose of the injunction, and in the absence of enforcement in the extreme ways allegedly licensed by the order,

³⁵ Cf. *Calder v. Jones*, 465 U.S. 783, 790 (1984) (constitutional validity of jurisdiction not affected by parties' assertion of First Amendment rights).

there is no reason not to allow any remaining potential overbreadth to be averted by continuing reasonable construction.³⁶

III. THE INJUNCTION IS NOT VAGUE.

Petitioners correctly recite the principle that an injunction is unconstitutionally vague if it "either forbids or requires the doing of an act in terms so vague that [persons] of common intelligence must necessarily guess at its meaning and differ as to its application." Petitioners' Brief 30-31 (quoting *Connally v. General Construction Co.*, 269 U.S. 385, 391 (1926)). However, Petitioners' challenge to the injunction ignores the explanation of this principle that the Court has articulated in the decades since *Connally*. Given the inherent imprecision of the language, see *Grayned v. Rockford*, 408 U.S. 104, 110 (1972), a law is not void for vagueness simply because "the fertile legal 'imagination can conjure up hypothetical cases in which the meaning of (disputed) terms will be in nice question.'" *Id.* at 110 n.15 (citation omitted). Rather, the determination of whether a regulation should be struck down for vagueness is made in light of the purposes underlying the proscription of

³⁶ Even should this Court find that the injunction "reaches a substantial number of impermissible applications," *Ferber*, 458 U.S. at 771, the order should not be struck down entirely. As "sparingly" as overbreadth doctrine is invoked to void statutes, *Broadrick*, 413 U.S. at 613, it should be resorted to even less to remedy defective injunctions. Applied to statutes, the possibility of facial invalidation deters legislators from casually drafting overbroad statutes in reliance on the availability of judicial correction of their errors. See *Osborne*, 495 U.S. at 121. These considerations, arising out of the relationship between the judicial and legislative branches, do not apply to appellate review of injunctive relief. Appellate modification of injunctions neither encourages infringement of constitutional rights nor encroaches on the prerogatives of another branch. See, e.g., *NAACP v. Claiborne Hardware Co.*, 458 U.S. 886, 924 n.67 (1982) (requiring permanent injunction to be either dissolved by the Mississippi Supreme Court or modified to restrain only unlawful conduct and the persons responsible for conduct of that character); *State Farm Fire & Casualty Co. v. Tashire*, 386 U.S. 523, 537 (1967) (directing substantial modification of injunction).

laws that provide inadequate guidance. Petitioners, however, rest their contention that the injunction is vague on a series of theoretical uncertainties and improbable hypotheticals far removed from the reasons for the vagueness doctrine's existence.

A. THE INJUNCTION GIVES PETITIONERS FAIR WARNING OF WHAT ACTIVITY IS PROHIBITED.

Vague laws offend in large part because they "may trap the innocent by not providing fair warning." *Grayned*, 408 U.S. at 108. Here, Petitioners and their partners cannot plausibly maintain that they are unable to ascertain the restraints that the injunction places on their activity. Indeed, it is essentially the type of activity in which Petitioners have already engaged and which has disrupted the operation of the Clinic and endangered both those who work there and those who seek its services.

In light of the injunction's "announced purpose," *id.* at 112 and "particular context," *id.* (citation omitted), enforcement of the order does not threaten to ambush those subject to it in the fanciful ways that Petitioners describe. For example, Petitioners suggest that under the requirement in section (3) that crossing Dixie Way via the crosswalk be "prompt," those whose progress is hindered by disability, age, or inclement weather may inadvertently fall prey to this provision. *See* Petitioners' Brief 33. Similarly, while the limitation on "sidewalk counseling" within the 300 foot zone under section (5) simply forbids Petitioners and their partners to "accompany . . . encircle, surround, harass, threaten or physically or verbally abuse" those who decline such "counseling," Petitioners raise the specter that this provision may be invoked against any "pro-life person . . . discuss[ing] marital problems" in that area. *Id.* at 35. Still further in this imaginative vein, Petitioners paint the scenario of a person sharing their views who moves into the neighborhood of someone who could be classified as an "agent" of the Clinic under the most expansive legal definition of that term; Petitioners apparently fear that such a person could find that (s)he has violated the terms of section (6). *See id.* at 32, 35.

To void the injunction on the basis of these almost facetious constructions would clash with the realistic and contextual approach set forth in *Grayned*. The test is not whether the order's provisions, read in a vacuum for all of their literal worth, are susceptible to varying interpretation. Rather, the injunction is valid if its background and purpose afford a "particular context" from which its words can be reasonably understood by those subject to its restrictions. Thus, under this standard, Petitioners' effort to analogize the injunction to laws like the ordinance struck down in *Coates v. City of Cincinnati*, 402 U.S. 611 (1971), must fail. *See* Petitioners' Brief 34. The Coates ordinance made it a criminal offense for "three or more persons to assemble . . . on any of the sidewalks . . . and there conduct themselves in a manner annoying to persons passing by" *Coates*, 402 U.S. at 611. The intolerable inability to determine whether one's gathering fell under a city-wide ban on "annoying" assemblages bears no resemblance to the injunction's detailed notification to Petitioners and those acting in concert with them that they must cease their obstructive and dangerous behavior. A geographically confined injunction, which restricts activities such as blocking access to the Clinic, converging on cars and shouting epithets at their occupants, and threatening patients and employees of the Clinic, and which is specifically directed at those who have engaged in this behavior before and those who act in concert with them, more than adequately alerts those bound by the order of what conduct they must avoid.

B. THE INJUNCTION DOES NOT CHILL THE EXERCISE OF PROTECTED EXPRESSION.

A related but distinct defect of vague laws is that their "[u]ncertain meanings inevitably lead citizens to 'steer far wider of the unlawful zone' . . . than if the boundaries of the forbidden areas were clearly marked." " *Grayned*, 408 U.S. at 109 (citations omitted). Again, only by stretching the terms of the injunction far beyond their obvious import can Petitioners allege that they and others are deterred from engaging in protected activity by the possibility that such activity may be barred by the order. A reasonable person

will not feel compelled to refrain from discussing adoption in the vicinity of the Clinic. *See* Petitioners' Brief 35. Nor can Petitioners and those acting in concert with them realistically fear "approaching" with their message someone whose wish to use the Clinic and unwillingness to communicate with them cannot yet be determined. *See id.* at 34. Conversely, one need not "guess" on which side of the line between threatening and nonthreatening communications pointing the figure of a gun lies. *See id.*³⁷

C. THE INJUNCTION DOES NOT ENCOURAGE ARBITRARY AND DISCRIMINATORY ENFORCEMENT.

The final principal vice of vague laws that this Court has identified is that they present "dangers of arbitrary and discriminatory applications." *Grayned*, 408 U.S. at 109. For the same reasons that the injunction's terms and context provide adequate notice to Petitioners and those acting in concert with them, the injunction also gives sufficient guidance to those who enforce it. The touchstone is not whether the injunction allows for some discretion, *see id.* at 114 (enforcement always "requires the exercise of some degree of police judgment"), but whether that discretion has been adequately confined. There is no realistic basis in the language, structure, or history of this injunction to believe that it will be used to accomplish anything other than the purpose for which it was issued: to prevent Petitioners and those acting in concert with them from further obstructing the operation of the Clinic and endangering its patients and employees. Nothing in the injunction's terms reasonably read or in the record of this case suggests that disabled protesters will be prosecuted for involuntary slow movement along the

³⁷ Moreover, even if some aspects of the injunction are held to be insufficiently precise, these defects can be cured by narrowing state construction, *see Young v. American Mini Theatres, Inc.*, 427 U.S. 50, 60 (1976) (plurality opinion), or modification, *see supra* n.36, rather than invalidation of the entire order.

crosswalk, or that any other phantom abuse of authority that Petitioners have conjured up will actually materialize.³⁸

CONCLUSION

The decision of the Florida Supreme Court should be affirmed.

Respectfully submitted,

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³⁸ The conclusion that the injunction is not vague is bolstered by the rejection, by at least three United States Courts of Appeal, of vagueness challenges to similar injunctions issued under similar circumstances. *See Northeast Women's Center, Inc. v. McMonagle*, 939 F.2d 57 (3rd Cir. 1991); *Medlin v. Palmer*, 874 F.2d 1085 (5th Cir. 1989); *Portland Feminist Women's Health Center v. Advocates for Life, Inc.*, 859 F.2d 681 (9th Cir. 1988).